Legal aspects of IT security
Master in cybersecurity

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Academic year 2025-2026

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What is law?

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Summary

I. The concept of law
II. Foundations and sources of law
III. Subdivisions and branches of law
IV. Organization of the judiciary in Belgium

I. The concept of law

Several meanings

- Set of rules governing relations between members of a same society

- Science that studies these rules

I. The concept of law

Distinction :

- Objective law
- Subjective rights

Illustrations

- ✓ “The buyer's main obligation is to pay the price on the day and at the place specified in the sale” (Civil Code, art. 1650)
- ✓ “The leasing of things is a contract by which one of the parties undertakes to allow the other to enjoy something for a certain period of time, and for a certain price that the other party undertakes to pay” (Civil Code, art. 1709)

II. Foundations and sources of law

Foundations of law : the principle of the separation of powers

- Legislative power
- Executive power
- Judicial power

II. Foundations and sources of law

3 "traditional" sources :

1. Legislation, by legislative and executive power
2. Case law, by judicial power
3. Doctrine

+

- Individual and concrete rules of law
- Custom
- General principles of law

II. Foundations and sources of law
1. Legislation

A. Supranational legal norms
B. Belgium is a federal State
C. Hierarchy of legal norms in Belgium
D. Control of legality of norms in Belgium

II. Foundations and sources of law
1. Legislation – A. Supranational legal norms

Focus on :

- The Council of Europe

Promotion of human rights, democracy and rule of law in Europe

- European Union

Economic and political Union

! Council of Europe ≠ European Union

II. Foundations and sources of law
1. Legislation – A. Supranational legal norms

Focus on :

- The Council of Europe

European Convention of Human Rights and additional protocols

- European Union

Treaties, Regulations, Directives, Decisions, Recommendations and Opinions

https://youtu.be/clmSKbV5Z9w

II. Foundations and sources of law
1. Legislation – B. Belgium is a federal State

- The Constitution
- Belgium, a federal State

II. Foundations and sources of law
1. Legislation – B. Belgium is a federal State

- **The Constitution**

Adopted in 1831

It sets out :

- the form of the State
- the status of the powers
- the fundamental rights of individuals

II. Foundations and sources of law
1. Legislation – B. Belgium is a federal State

- **Belgium, a federal State**

"Belgium is a federal state made up of communities and regions" (Constitution, art. 1)

- Federal State
- Communities
- Regions
- Distribution of competences

(+ Provinces and municipalities)

II. Foundations and sources of law
1. Legislation – B. Belgium is a federal State

- **Belgium, a federal State**

- *Federal State* :
  - The King (= executive power)
  - The Federal Government (= executive power)
  - The Federal Parliament (The House of Representatives and The Senate) (= legislative power)

II. Foundations and sources of law
1. Legislation – B. Belgium is a federal State

- **Belgium, a federal State**

- *Communities* :

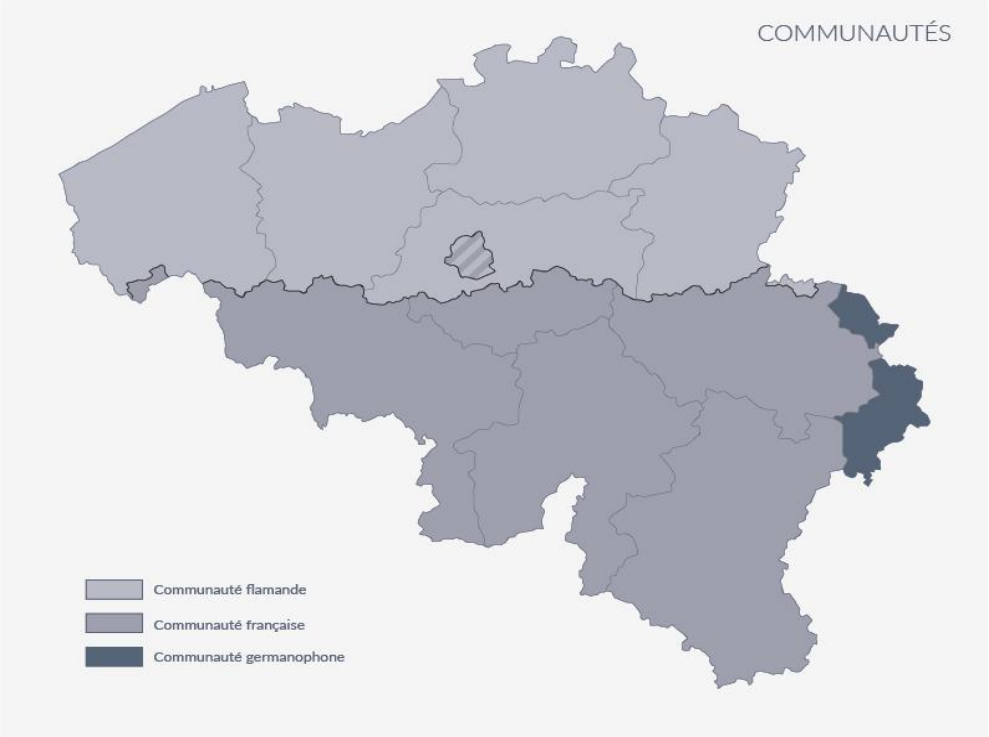
"Belgium is made up of three communities: the French Community, the Flemish Community and the German-speaking Community"
(Constitution, art. 2)

  - Parliament of the French Community (= legislative power of the French Community)
  - Government of the French Community (executive power of the French Community)

II. Foundations and sources of law
1. Legislation – B. Belgium is a federal State

- **Belgium, a federal State**

- *Communities* :



II. Foundations and sources of law
1. Legislation – B. Belgium is a federal State

- **Belgium, a federal State**

- *Regions* :

"Belgium is made up of three regions: the Walloon Region, the Flemish Region and the Brussels Region" (Constitution, art. 3)

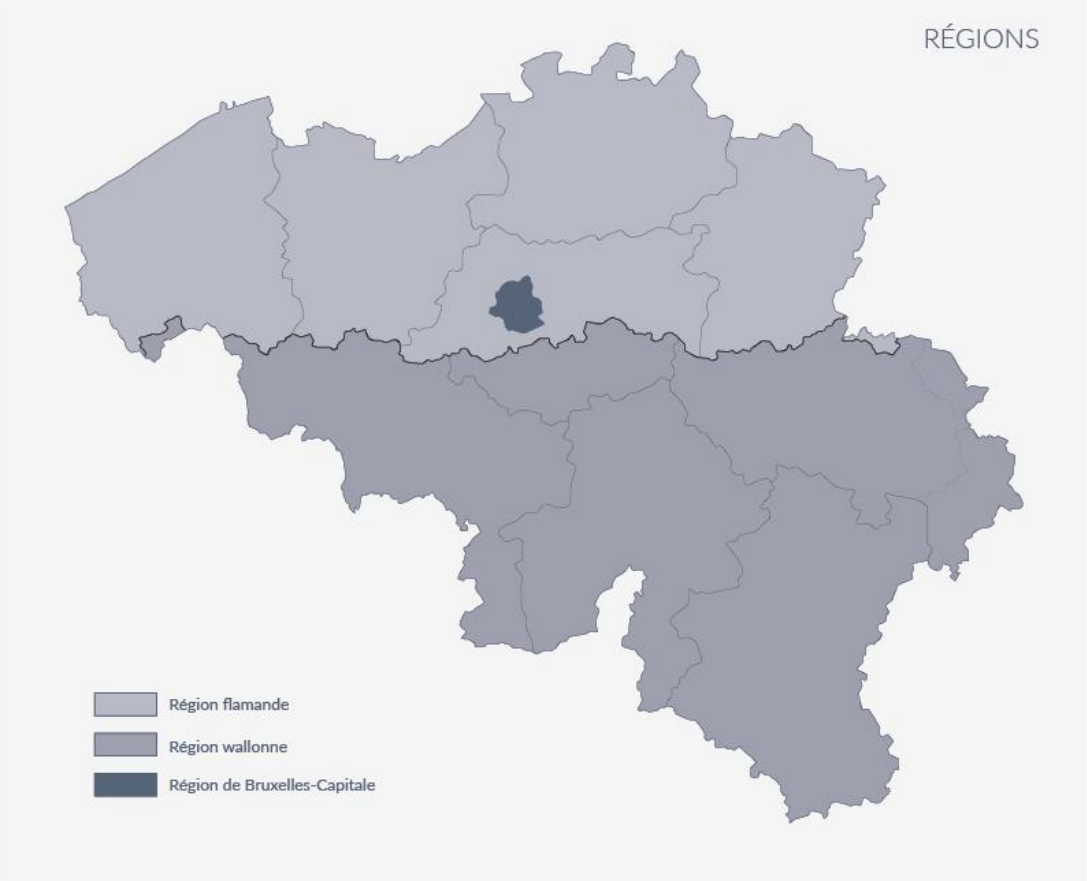
! ≠ linguistic regions!

- Walloon Parliament (= legislative power of the Walloon Region)
- Walloon Government (= executive power of the Walloon Region)

II. Foundations and sources of law
1. Legislation – B. Belgium is a federal State

- **Belgium, a federal State**

- *Regions* :

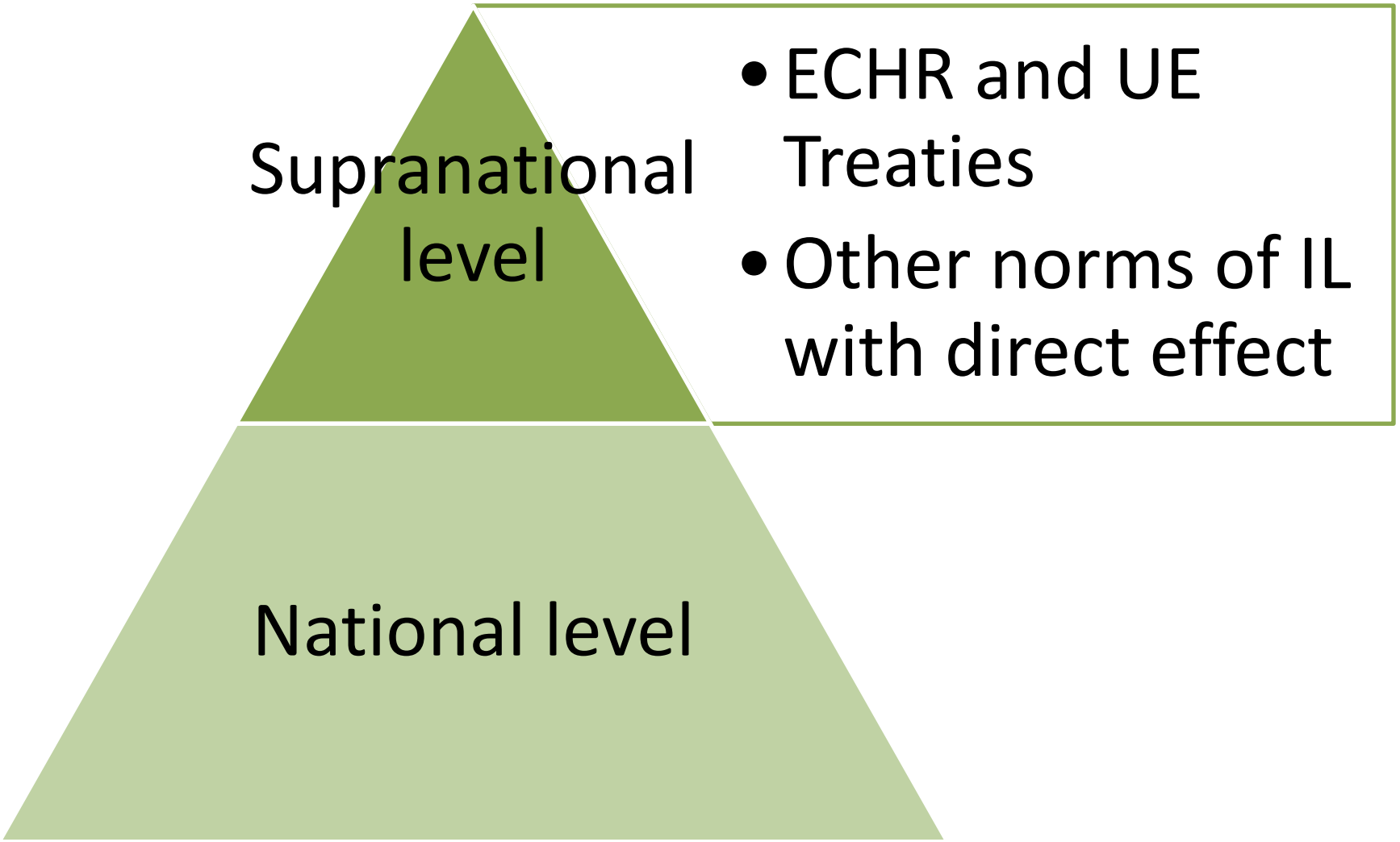


II. Foundations and sources of law
1. Legislation – B. Belgium is a federal State

- **Belgium, a federal State**

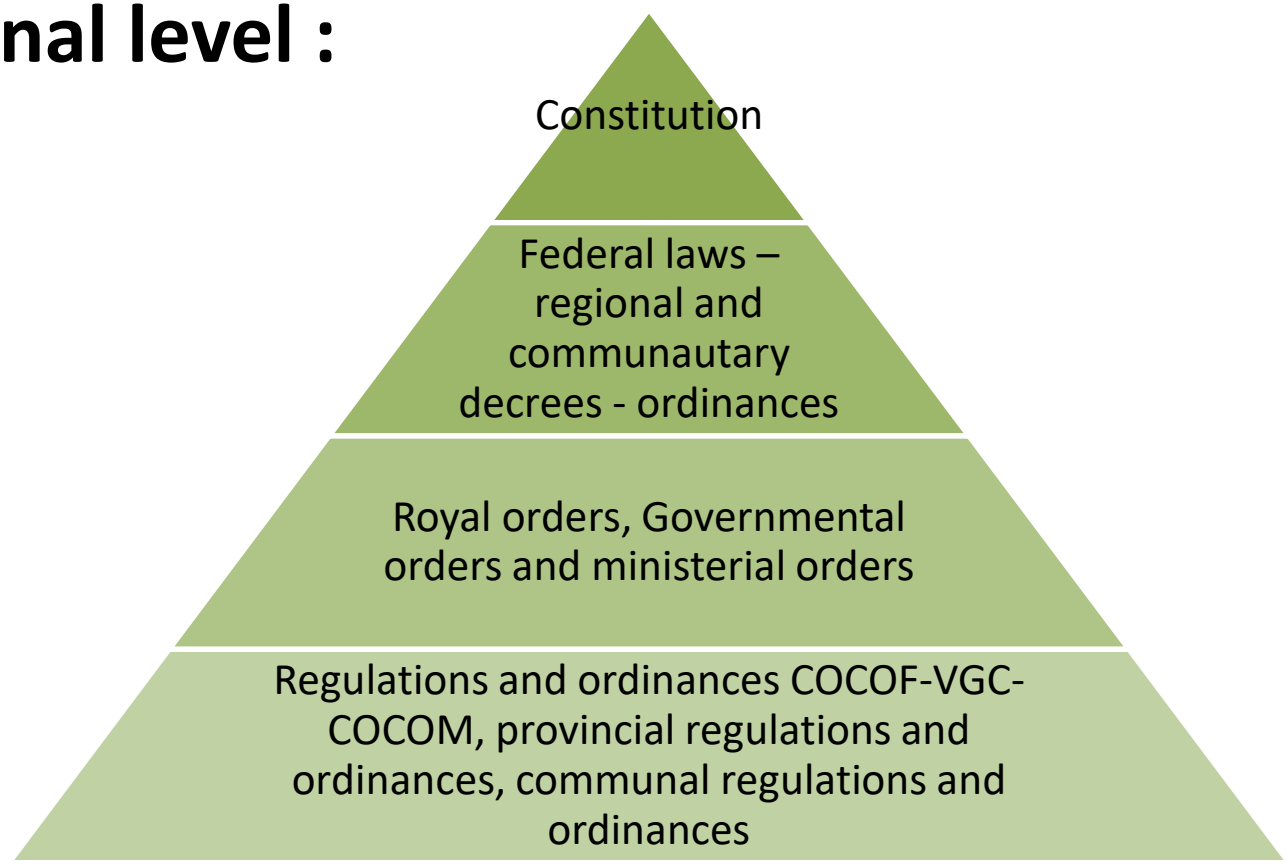
- *Distribution of competences* :
  - The federal state: general interest of all Belgians
  - The communities: based on the notion of "language”
  - The regions: occupation of the territory in the broadest sense of the term

II. Foundations and sources of law
1. Legislation – C. Hierarchy of legal norms in Belgium



II. Foundations and sources of law
1. Legislation – C. Hierarchy of legal norms in Belgium

National level :



Distinction :

- Controlled norm
- Control norm

-> Constitutional Court, Council of State, European Court of Human Rights and European Court of Justice

II. Foundations and sources of law
1. Legislation – D. Control of legality of norms in Belgium

	Controlled norm	Control norm
Constitutional Court	Laws, decrees and ordinances	- Constitution, Title II - Constitution, art. 143, §1, 170, 172 and 191 - Legal rules regarding distribution of powers among different entitites
Council of State	Decisions of federal, regional, communities, provincial and municipal governments	- Constitution - Laws, decrees and ordinances - General principles of law - International treaties and conventions
ECHR	National legislation and administrative practice	European Convention of Human Rights
ECJ	- Legality of acts of EU institutions - Member States compliance with their EU obligations - EU Law interpretation	EU Law

II. Foundations and sources of law
2. Case-law

-> See IV. Organisation of the judiciary in Belgium

III. Subdivisions and branches of law

- **Public law** :

- Constitutional law
- Administrative law
- Tax law
- Social security law
- Criminal law and criminal procedure law

- **Private law** :

- Civil law
- Business law
- Labour law
- Judicial law

III. Subdivisions and branches of law

What about IT security law?

- Criminal law and criminal procedure
- Labour law
- Business law

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- Privacy law
- Telecommunications law
- Information and networks security law

IV. Organization of the judiciary in Belgium

1. The players in the justice system
2. The judge's jurisdiction
3. Judicial organisation

IV. Organization of the judiciary in Belgium
1. The players in the justice system

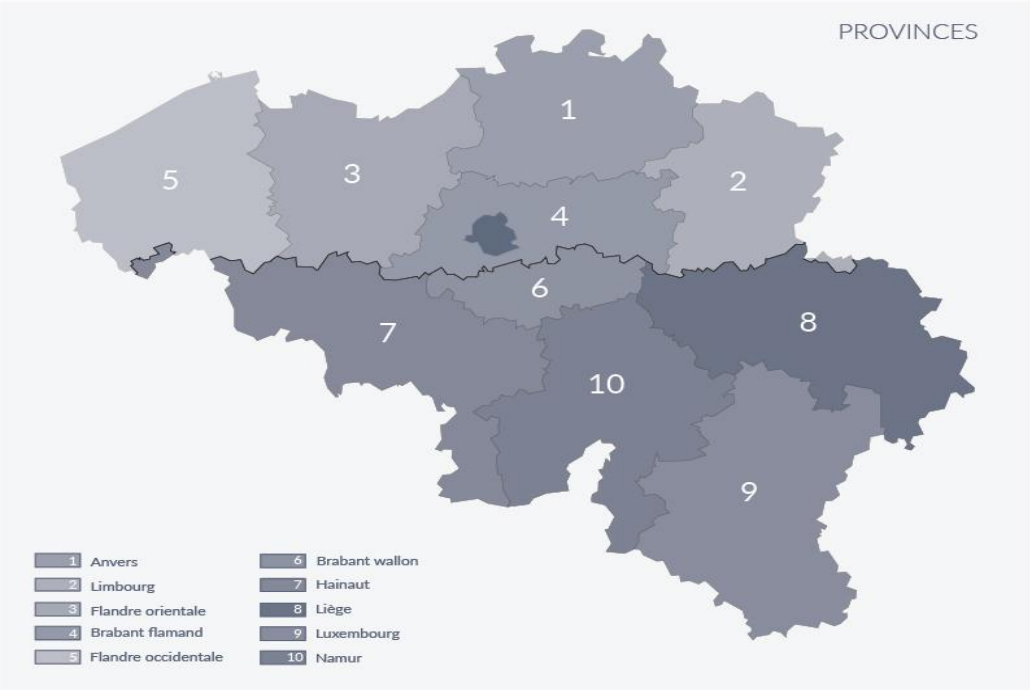
- The magistrate
- The court clerk
- The lawyer
- The bailiff

IV. Organization of the judiciary in Belgium
2. The judge's jurisdiction

- Material competence
- The object
- The value
- Urgency
- Quality of the parties

- Territorial jurisdiction
- The judicial canton
- The judicial district
- The province
- The jurisdiction of the Court of Appeal

Brugge
OOST-VLAANDEREN
Antwerpen
Turnhout
ANTWERPEN
Veurne
Gent
Mechelen
LIMBURG
Dendermonde
WEST-VLAANDEREN
Brussel
LEUVEN
Hasselt
Ieper
Oudenaarde
Leuven
Brussel
Tongeren
Kortrijk
Bruxelles
BRABANT-WALLON
Liège
Eupen
Tournai
Nivelles
Verviers
HAINAUT
Huy
LIÈGE
Mons
Namur
Charleroi
EUPEN
NAMUR
Dinant
Marche-En-Famenne
LUXEMBOURG
Neufchâteau
Arlon


PROVINCES
1
2
3
4
5
6
7
8
9
10
1 Anvers
2 Limbourg
3 Flandre orientale
4 Brabant flamand
5 Flandre occidentale
6 Brabant wallon
7 Hainaut
8 Liège
9 Luxembourg
10 Namur

ANTWERPEN
GENT
BRUXELLES
BRUSSEL
MONS
LIEGE

IV. Organization of the judiciary in Belgium
3. Judicial organisation

Court of cassation		
Appeal Courts	Labor Courts	Assize Courts
First instance tribunals	Entreprise tribunals	Labour tribunals
Police tribunals	Civil magistrates	

VI. Organization of the judiciary in Belgium
3. Judicial organisation

Civil magistrates

- Material competence : civil litigation < 5000 euros + specific competence
- Territorial jurisdiction : 1/judicial canton

IV. Organization of the judiciary in Belgium
3. Judicial organisation

Police tribunals

- Material competence : traffic litigation and contraventions
- Territorial jurisdiction : 1/judicial district

IV. Organization of the judiciary in Belgium
3. Judicial organisation

First instance tribunals

- Material competence : civil tribunal, criminal tribunal, family and youth tribunal and sentence and enforcement tribunal (4 sections ≠)
- Territorial jurisdiction : 1/judicial district

IV. Organization of the judiciary in Belgium
3. Judicial organisation

Entreprise tribunals

- Material competence : disputes between entreprises
- Territorial jurisdiction : 1/jurisdiction of Court of Appeal

! 1 specific feature :

- 1 professional magistrate and 2 « consular judges »

IV. Organization of the judiciary in Belgium
3. Judicial organisation

Labour tribunals

- Material competence : labour law and social security litigation
- Territorial jurisdiction : 1/jurisdiction of Court of Appeal

! 1 specific feature :

- 1 professional magistrate and 2 « social judges »

IV. Organization of the judiciary in Belgium
3. Judicial organisation

Appeal Courts

- Material competence : appeal against judicial decisions rendered by first instance tribunals and entreprise tribunals
- Territorial jurisdiction : 1/jurisdiction of Court of Appeal

IV. Organization of the judiciary in Belgium
3. Judicial organisation

Labour Courts

- Material competence : appeal against judicial decisions rendered by labour tribunals
- Territorial jurisdiction : 1/jurisdiction of Court of Appeal

IV. Organization of the judiciary in Belgium
3. Judicial organisation

Assize Courts

- Material competence : crimes, press offences and political offences
- Territorial jurisdiction : 1/province

! 2 specific features :

- 3 professional magistrates and a popular jury
- Not a permanent court

IV. Organization of the judiciary in Belgium
3. Judicial organisation

Court of cassation

Only decisions about the legality of judicial decisions rendered at last instance

- Violation of the law
- Ignorance of a rule of law

-> no establishment and no interpretation of facts

Any questions?

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Thank you for your attention!

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